

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

UNOPPOSED MOTION TO EXTEND MOTION TO COMPEL RESPONSE DEADLINE

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Respondent BAL Container Line Co., Limited ("Respondent" or "BAL"), by and through its undersigned counsel, hereby submits this Unopposed Motion to Extend Motion to Compel Response Deadline ("Motion") respectfully requesting a 1-week extension of the current deadline set for BAL's response to Complainant 20230930-DK-BUTTERFLY-1, Inc.'s ("Complainant" or "BBBY") motion to compel further corporate testimony from BAL ("Motion to Compel"). BBY filed its Motion to Compel on December 19, 2025. *See* Docket Entry No. 51. Pursuant to 46 C.F.R. Section 502.150(a)(3), BAL's response is currently due December 26, 2025.

GOOD CAUSE EXISTS TO EXTEND THE CURRENT RESPONSE DEADLINE

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Good cause exists for the extension requested herein. Based on the current deadline, BAL must file its response to the Motion to Compel during the week of Christmas (December 25). Counsel for BAL intend to observe this holiday and spend time with their families. Counsel for BAL further anticipate that such observance will interfere

with their ability to meaningfully respond to BBBY's Motion to Compel by December 26, which falls directly after Christmas. In light of this holiday, BAL respectfully requests a 1-week extension to the currently-set deadline to file its response to the Motion to Compel. This extension would modify BAL's response deadline to January 2, 2026. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. Counsel for Complainant does not oppose the Motion and "is in agreement with [Respondent's] request for additional time to respond." December 19, 2025 email from Complainant's counsel, Gregory Crapanzano.

WHEREFORE, BAL prays that its Unopposed Motion to Extend Motion to Compel Response Deadline be granted.

[SIGNATURE PAGE FOLLOWS]

Dated: December 22, 2025

Respectfully submitted,

THEODORA ORINGHER



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 22nd day of December, 2025, a true and correct copy of the foregoing **UNOPPOSED MOTION TO EXTEND MOTION TO COMPEL**

RESPONSE DEADLINE was served via electronic mail on:

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